

Privacy Data Sheet GHEC with Data Residency

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Introduction

This Privacy Data Sheet explains how GitHub processes information from or about an identified or identifiable person (“personal data”) who is assigned a license to use GitHub Enterprise Cloud with Data Residency, also referred to as the “Services.”

How to Use this Information

This information is meant to help you understand what you are purchasing and assess how GitHub Enterprise Cloud with Data Residency meets your company’s needs. It complements the [GitHub Data Protection Agreement \(DPA\)](#) in describing the personal data GitHub processes as a processor to provide GitHub Enterprise Cloud with Data Residency. It does not create additional rights or remedies and should not be construed as a binding agreement.

Data Protection Roles and Processing Purpose

The European Union's General Data Protection Regulation or "GDPR" uses the terms data controller (or controller) and data processor (or processor) to describe key roles and responsibilities for the lawful processing of personal data. This data sheet uses those terms as they're defined in the GDPR.

As the purchasers of GitHub Enterprise Cloud with Data Residency, your organization is the data controller unless explicitly stated as an exception below. Your organization is responsible for using GitHub Enterprise Cloud with Data Residency subject to your organizational policies and procedures.

Your Processing instructions to GitHub

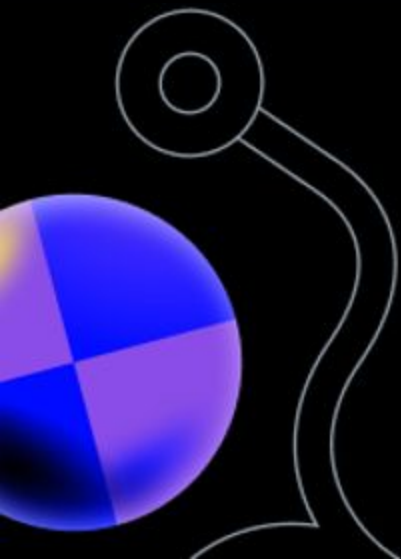
When you use GitHub Enterprise Cloud with Data Residency, you instruct GitHub to processes your employees' personal data on your behalf to:

- Deliver, maintain, and update the Services according to your settings and usage
- Troubleshoot the Services, this involves preventing, detecting, resolving, and mitigating issues, including security incidents and product-related problems, by fixing software bugs and maintaining the Services' functionality and up-to-dateness
- Enhance user productivity, reliability, effectiveness, quality, privacy, accessibility, and security by keeping the Service current and operational

These practices are outlined in GitHub's Data Protection Agreement (DPA), which details our data handling commitments to our data controller customers.

To operate our Services, GitHub also uses certain personal data as a data controller, acting on its own behalf—but with customer authorization under the DPA—only for the following purposes:

- Billing and account management
- To comply with and resolve legal obligations
- For abuse detection, prevention, and protection, virus scanning, and scanning to detect violations of terms of service
- To generate summary reports for calculating employee commissions and partner incentives
- To produce aggregated reports for internal use and strategic planning, covering areas like forecasting, revenue analysis, capacity planning, and product strategy



Personal data GitHub processes to deliver the Services

**GitHub processes the following types of
personal data to deliver the GitHub
Enterprise Cloud with Data Residency.**

Customer Content

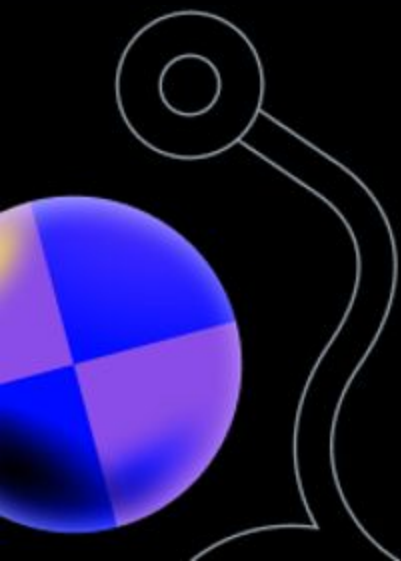
Customer Content means a customer's text, data, software, images and other materials that are available through the Services. Examples include source code, repository names, user generated content as part of pull requests and issue comments, file paths and file names generated by the end user. Licensee information, Account management, Support, and Feedback data are not part of Customer Content.

Licensee Information

Licensee information is the name and enterprise email address of the individual that receives access to GitHub Enterprise Cloud with Data Residency.

Account Management Information

Account management data is the information needed to provision and manage a GitHub Enterprise Cloud with Data Residency account, including an administrator name, billing address, and payment specifics.



Support Data

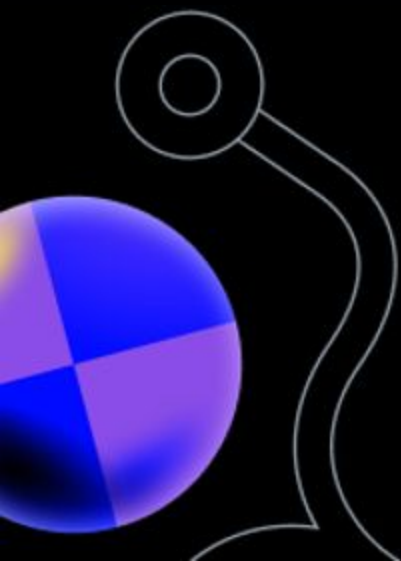
Support Data includes all data, e.g., code, text or multimedia files, provided to GitHub by or on behalf of a GitHub Enterprise Cloud with Data Residency customer through an engagement with GitHub to obtain technical support through support requests or case notes, phone conversations, online chat sessions or remote assistance sessions.

Feedback Data

Feedback data is information provided to GitHub, either upon request or initiated by the user, detailing their experience and the functioning of GitHub products and services.

System-Generated Logs

System-generated logs are information on system activity created during regular service operations to provide the service. Logging is crucial for identifying, detecting, responding to, and preventing operational issues, policy violations, and fraud; optimizing system, network, and application performance; supporting security investigations and resilience activities; and complying with laws and regulations.



International Data Transfers

Data protection laws vary by country and industry with some imposing more restrictive transfer obligations. It is your responsibility to determine if GitHub Enterprise Cloud with Data Residency, as described in our product documentation, meets your industry and geographic requirements.

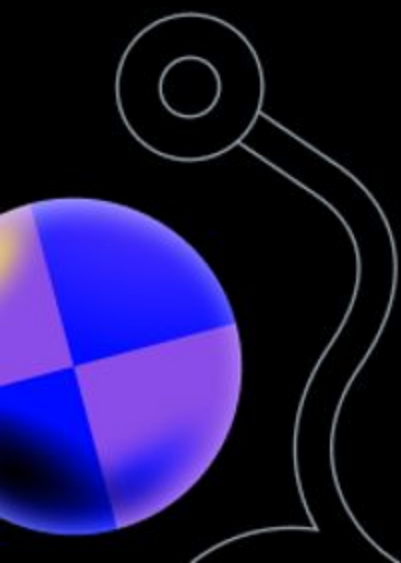
GitHub adheres to the following legal frameworks for protecting data transferred out of the European Economic Area (EEA).

Adequacy Decision

The European Commission adopted its adequacy decision for the EU-U.S. Data Privacy Framework (DPF) in June 2023. The decision concludes that the United States ensures an adequate level of protection – comparable to that of the European Union – for personal data transferred from the EU to US companies under the DPF. On the basis of the adequacy decision, personal data can flow safely from the EU to US companies participating in the Framework, without having to put in place additional data protection safeguards.

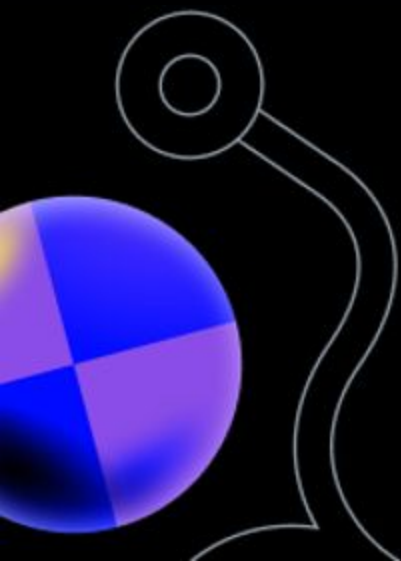
GitHub complies with the EU-U.S. and Swiss-U.S. Data Privacy Frameworks (DPF) and the UK Extension to the EU-U.S. DPF. We adhere to the DPF Principles and remain responsible for personal data shared with third parties for external processing under the Onward Transfer Principle. To see GitHub's certifications, see [U.S. Department of Commerce Data Privacy Framework List](#).

If you have inquiries regarding our DPF certification, please contact us. GitHub is subject to the US Federal Trade Commission's investigation and enforcement powers. You can also refer complaints to your local data protection authority, and we will work with them to resolve your concerns. The DPF provides the right to invoke binding arbitration for unresolved complaints, as detailed in Annex I of the DPF Principles.



Standard contractual clauses

The Standard contractual clauses (SCCs) are written commitments between parties that can be used as a ground for data transfers from the EEA to third countries by providing appropriate data protection safeguards. The SCCs have been approved by the European Commission and can not be modified by the parties using them (you can see the SCCs adopted by the European Commission [here](#), [here](#), and [here](#)). Such clauses have also been approved for transfers of data to countries outside the UK and Switzerland. We rely on SCCs for our data transfers where required and in instances where they are not covered by an adequacy decision through Section 7 of the Github Data Protection Agreement.



Data Processing and Storage Infrastructure

GitHub Enterprise Cloud with Data Residency runs on a combined infrastructure using Azure in the designated region for storage of Customer Content. Other processing and storage occurs as described in GitHub Enterprise Cloud with Data Residency product documentation. GitHub's support staff is located primarily in the US, EU, Canada and Australia. Regardless of the processing location, all transfers are protected under the legal frameworks described in the International Data Transfers section above.

Subprocessors

When GitHub hires suppliers to process personal data to provide certain aspects of the services, these suppliers are "subprocessors" (following GDPR terminology). GitHub requires its subprocessors to handle personal data according to applicable data protection laws and meet the same obligations GitHub meets as a data processor, and detailed in GitHub's Data Protection Agreement (DPA). These obligations include:

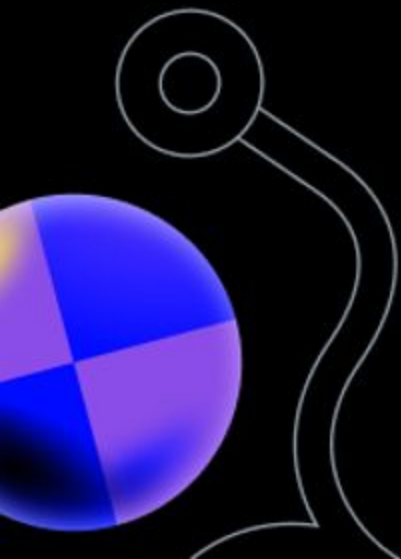
- Processing personal data based on the controller's (customer's) documented instructions
- Using only reliable personnel for subprocessing activities, who are contractually bound to uphold data privacy and security, as required by applicable data protection laws
- Promptly informing GitHub of any security breaches
- Cooperating with GitHub to address requests from data controllers, data subjects, or data protection authorities, as applicable

A list of GitHub subprocessors can be found on GitHub's subprocessor page.

GitHub Affiliates

GitHub's global affiliates are listed on GitHub's subprocessor page.

GitHub's global affiliates are bound by GitHub's Data Privacy Framework certification and have entered into appropriate data transfer agreements that outline data protection requirements and incorporate the relevant EU Standard Contractual Clauses (SCCs). A list of GitHub affiliates can be found on GitHub's [subprocessor page](#).



Security (Technical & Organizational Measures)

GitHub's DPA sets out the technical and organizational measures in Table I from Attachment 2 which includes the following commitments:

- GitHub employs robust encryption and data security measures for data in transit and at rest
- Personnel are authorized to process personal data with stringent confidentiality obligations, which continue post-employment
- GitHub implements a comprehensive set of technical and organizational measures, including access controls that maintain a record of security privileges and ensure personnel have appropriate, role-based access to systems
- Industry-standard practices for user authentication are enforced, and GitHub has controls to ensure no systems storing customer data are part of the same logical network used for business operations
- GitHub strives to retain business continuity through emergency and contingency plans, redundant storage, and data recovery procedures, logging all restoration efforts
- Threat detection controls, event logging, and continuous monitoring solutions are in place to identify and respond to suspicious activities while regular security training is mandated for all employees.

Security (Technical & Organizational Measures)

GitHub limits physical access to facilities and maintains stringent records of media containing customer data. Systems are in place to protect against data loss due to power failures, and customer data is securely deleted when no longer needed.

In case of security incidents, GitHub promptly notifies affected customers and tracks disclosures of customer data. Managed IP access control measures allow authorized users to access organizational resources from any IP address, with options to restrict access through configurable IP address lists.

These comprehensive measures ensure the ongoing confidentiality, integrity, availability, and resilience of data processing systems and services, making GitHub a secure and reliable choice for managing your organization's data.